Privacy at Transit

When you choose Transit, you're entrusting us with information about where you are, where you're going, and how you're getting there. It's our responsibility to be good stewards of this information, to safeguard your privacy, and to demonstrate that we are worthy of your trust.

Living up to that responsibility requires constant, thoughtful work, guided by three principles that help us make decisions to protect the privacy of our users.

nly for what's necessary

for what we need, nothing more. When we need specific information for a specific purpose, we make it clear and ask in advance. And we never collect data in

Disconnect the dots

Where you are and where you've been can be sensitive information. Which is why we

Data for public transit, not advertisers

Information about where and how the app is being used helps researchers and public agencies better understand the needs of transit riders. Unlike other navigation apps, we never share your data with advertisers or data brokers.

Okay, now let's translate that into lawyer-speak.

First things first: legally, Transit is registered as 9280-0366 Québec Inc. Yes, we're based in Montréal. Et oui, on parle le français aussi.

9280-0366 Québec Inc ("We", "Us", "Our") has developed a mobile application and website ("Transit", "App"). Our App provides users with real-time public transit information and trip planning capabilities, as well as functionalities that allow users to buy transit fares or unlock a shared bike (we'll refer to these activities as our "**Services**"). This Privacy Policy applies only to our App.

Intention

This Privacy Policy provides you with details about how we process your personal information, and explains how you can exercise your rights.

This Privacy Policy applies to our Services, which means that it does not apply in these situations:

- Personal information processed by our partners when you agree to share information with them (such as fare payment providers, bikeshare services or public transportation agencies). In this case, the relevant partner's privacy policy would apply;
- Information collected by a third party website, application or service that you access from a link or URL on the App;
- If you communicate with us on social media (this Privacy Policy only applies to our Services).

How to contact us

We're happy to answer questions or concerns regarding your personal information or this Privacy Policy. You can reach us by e-mail at privacy@transit.app, or by phone at +1 617-440-4690. If you prefer, you can also send us a letter at:

9280-0366 Québec Inc.
Attn: Privacy Department
5333 Avenue Casgrain #803
Montréal, QC
Canada, H2T 1X3

If you are located in the European Union, the United Kingdom, or Switzerland, we are the Data Controller of your personal information (personal data under EU law). The contact information of our representative in the European Union under article 27 of the GDPR is Maître Alexandra Mazeyrac, Impact Lawyers, 199 bis Boulevard Saint-Germain 75007 Paris; representative-eu@transit.app. The contact information for our Data Protection Officer (DPO) is GoSecure Inc., 1275 Av. des Canadiens-de-Montréal, Suite 07-106, Montréal, QC, Canada, H3B 0G4; privacy@transit.app.

Why we collect information from you

We collect and process personal information only to fulfill two purposes:

Primary Purpose (supporting you through service delivery)

Help our users plan their trips, avoid delays, and make informed decisions about their travel (this involves collection of data about individual users, sometimes including personal information):

a. Real-time bus and metro schedules
b. Trip planning and route suggestions
c. Service alerts and updates
d. Fare information and payment options

Secondary Purpose (supporting the provision of public transit)

We cooperate with cities and academics, as well as transit agencies, transit authorities and transit operators ("Public Transit Providers") so they understand traveller patterns and preferences (using pseudonymous data for statistical analysis that does not require divulging the identity of individual users):

a. To ensure efficient and effective transport services
b. For long-term planning and infrastructure development
c. To help transit providers optimize routes, schedules, and frequencies to better match demand

Types of personal information we collect

We collect and process personal information only to fulfill two purposes:

Personal data we collect and store in your account

Name, email address, billing and shipping addresses, payment card number, date of birth, phone number, and saved locations.

Personal information we collect and store separate from your account

If you consent, we collect your location data (longitude and latitude) when you open the app and track your position while you are riding a public transit vehicle. We do not record your location when the app is not active.

In addition, we collect device information, push notification device identifiers, and app usage information.

Purpose of data processing	Data concerned	Legal basis for processing
Account creation and management	Email address, first name, last name	We create your account based on your explicit consent as you have no obligation to use this functionality, and we manage it based on our service agreement with you
Purchase of ticketing or bikeshare services	Email address, first name, last name, payment card number, billing and shipping address, phone number, birth date, transaction history	We process this data to provide you with our services based on our service agreement with you
Usage of ticketing, bikeshare, or ridehail and on-demand transit services	Email address, latitude and longitude	We process this information based on our service agreement with you

Normal usage of the application, such as planning trips or checking nearby departure information	Latitude and longitude	We process this data to provide our services based on our service agreement with you if you enable location data sharing with the App
Contributions to crowdsourced efforts that improve real-time information about transit service	Latitude and longitude	We obtain your explicit consent to collect this data. You also have no obligation to use this functionality
Saving favourite placemarks in the app to make it easier to plan trips	Latitude, longitude, address and name of favourite places (home, work, etc.)	We process this data to provide our services based on our service agreement with you. You also have no obligation to use this functionality
Provide directions to destinations using our Search feature, including to addresses you select from entries in your mobile phone's contact list or calendar	Address associated with contact or calendar entries	We process this data to provide our services based on our service agreement with you if you enable access to this information. You also have no obligation to use this functionality.
Help improve the quality of the App by sharing information to debug issues	Email address, device model details and OS version, latitude and longitude, previous trip planner request origin and destination	We process this data to provide our services based on our service agreement with you. We obtain your explicit consent before temporarily linking location data and account data for support purposes
Receiving push notifications for service alerts, personalized recommendations, promotional offers, or when a new region is available in Transit	Pseudonymized unique push notification device identifier	We process this data to provide our services based on our service agreement with you if you enable this feature. You also have no obligation to use this functionality.
Getting notified by email when a new region is available in Transit	Email address	We obtain your consent as you have no obligation to use this functionality
Pseudonymized data analysis by us or our partners	Pseudonymized datasets including altered location data	This processing is based on our legitimate interests or other applicable basis (such as scientific research) depending on the context

Depending on your place of residence, the legal basis for our processing or personal information may differ based on nomenclature used in applicable laws and regulations. For example, processing based on fulfilling our service agreement or our legitimate interests may be described as “implicit consent” in certain jurisdictions.

How we collect data from you

We collect information as described above in two ways:

- Direct collection from you such as:
  - You register a Transit account (which can include email address, first name, last name, payment card number, billing and shipping address, phone number, birth date, etc.)
  - You send us feedback through the “Contact us” feature in the Settings menu (including your email address and other information you may provide). When using this option, an identifier is included in the subject of the email that allows us to access contextual information about your app usage (such as your most recent locations, device type, OS version, and recent trip plans) that helps us address issues you may be reporting.
  - You instruct us to process or collect data, such as through your setting preferences, including when you authorize the collection of location data and motion activity when using the “GO” functionality (including settings you control on your device which determine whether or not the App will collect data in the background while the “GO” functionality is in use).

- Through automatic collection as a result of your use of the Services, such as:
  - Interacting with our App (taps, screens viewed, transit modes enabled, trips planned, searches made, etc.) from which performance data can be generated
  - General device location (region and country)
  - Device type, OS version, and other information about your device

Where we store and process your personal information

Your personal, directly identifiable account related information is held, encrypted on servers in Canada. Backups are on servers in the European Union.

Personal information not held in your account is pseudonymized and held on servers in the United States.

Processing and storage of your personal information

To deliver our Services, we use third party service providers to host and process your data. We ensure that our service providers agree to process personal information only as required to provide services to us and use appropriate safeguards to ensure the security of personal information.

We host and process your data with the following service providers:

Data storage:

- Google Cloud Platform (personal information not held in your account, United States; account-related personal information, Canada)
- Amazon Web Services (account-related personal information, Canada and European Union)

Service provisioning:

- GloboTech (hosting of web services)
- Amplitude (product analysis for application usage)
- nGrow (customer marketing platform)
- Sentry (application crashes and issues analysis)
- Firebase (storage of user preferences and favourite locations, and sending push notifications)
- Spreedly (payment services)
- Stripe (payment services)
- Helpscout (support platform)
- Intercom (support platform)
- Mailchimp (email marketing platform)
- RevenueCat (in-app purchase and refunds management)
- Apple (processing of in-app purchase refunds)

When and how we share your personal information

We share your personal information with our integration partners and with Public Transit Providers if necessary for customer support purposes, or if you request that we do so, for example, to make a purchase or sign up for a service:

- Public Transit Providers (to investigate a customer support request)
- Masabi (to offer fare payment for Public Transit Providers)
- Token Transit (to offer fare payment for Public Transit Providers))
- Bicycle Transit Systems and its subsidiaries (to offer bikeshare services)
- Lyft and its subsidiaries (to offer bikeshare services)
- Communauto (to offer carshare services)

We also share pseudonymous personal information, which is not associated with your account, with Public Transit Providers, and researchers. This information may include data sets such as:

- Coordinates of where the app was opened within a city
- Information about travel intent, such as origin and destination coordinates
- Details about trips, including the origin and destination of each leg of trips taken using the public transit agency

Please note that this data is not linked to your personal account and location data is altered to ensure reidentification is extremely unlikely.

Consent to Share Consumption Data with Apple

By using our app and making in-app purchases, you consent to our sharing of data regarding your usage and consumption of purchased content with Apple, as part of our efforts to resolve refund requests. This information may include details about how you have accessed and interacted with the purchased content. The purpose of sharing this data is to help Apple make an informed decision regarding refund requests. We ensure that such data sharing is done in compliance with Apple's policies and only as necessary to process your requests.

Other reasons to share your personal information

In case you request assistance with the use of our App, we might share your request and personal information, including your contact information, with third parties as necessary to address your request, such as with transit agencies and shared mobility providers directly involved in the issue.

In case a business transaction is completed or contemplated, any information may be transferred to the corporation that owns Transit or the relevant part of it in order to carry its business. A “business transaction” includes, but is not limited to, a reorganisation, merger, purchase, sale or other acquisition or disposition of a corporation or any of its assets. The entity acquiring personal information as part of a business transaction will be bound to process personal information as set forth in this Privacy Policy.

If we receive a request from law enforcement or if we are otherwise required to comply with a legal obligation, we may have to disclose your personal information. We take the time to verify that the request is lawful, and we share no more than we are required to.

When you purchase or access services from a transit agency or a shared mobility provider through our App, such as in cases of suspected credit card fraud, we will share the information required to ascertain your lawful use of those services (including your payment information, relevant personal information, and any relevant location data).

Security of your personal information

We’ve taken steps to protect your privacy by implementing technical and administrative controls to prevent unauthorized access or disclosure of your personal information.

We adhere to best practices and modern privacy system architecture principles, ensuring that personal information is compartmentalized. This approach limits our ability to create a profile of you.

If you ask us to debug a problem we might have to temporarily link your personal account information with non-account personal information. We have strict internal procedures that monitor those activities.

Your personal information from your account is always encrypted. Transit segregates duties to ensure no single Transit employee can ever decrypt your personal information.

We take several measures to protect your privacy when sharing pseudonymized data with third parties. For example, we truncate geographic coordinates to the level of a city block, we exclude all internal identifiers from shared data sets, and, when sharing trip plans, we prioritize using stop positions instead of a user’s location whenever possible.

Retention of personal information

We retain your personal information until you request its deletion. You can delete your account related personal information by using the “delete account” functionality in the App’s settings menu. Once your account information is deleted, the pseudonymised data previously

linked to your account becomes anonymous and is not deleted since it can no longer be linked back to you.

Personal information about children

We do not knowingly process personal information from children under the age of 13. If you have reason to believe that a child under the age of 13 has provided information to us, please contact us. If we learn that we have collected information of a child under 13, we will take steps to delete such information within a reasonable time.

Your rights

The law provides you with rights regarding your personal information. These rights may vary depending on the jurisdiction in which you are located, reside, or are a citizen, and they may not apply to all types of personal information. Most individuals using Transit have the right to access their personal information, and the right to request corrections to their personal information under certain circumstances, such as if the personal information is inaccurate or outdated.

We will authenticate you when you want to exercise your rights.

Depending on the circumstances, the following rights may be applicable to you:

Right to be informed

Your right to be informed is primarily met with this Privacy Policy. From time to time we may provide additional information through email communications or our websites.

Right of access

Please contact us through the “Contact us” button from within the app if you wish to receive a copy of your data.

Right to rectification

If you believe that the personal information we hold about you is misleading, inaccurate, or incorrect, please let us know and we will do our best to make the necessary corrections.

Right to erasure

Please use the “delete account” functionality in the App’s settings menu to erase your account related personal information which automatically anonymizes your non-account data.

Right to restrict processing

The app is designed to give you control of which services you use and what information you provide. Please contact us if you have any questions.

Right to data portability

Please contact us if you wish to receive a copy of your data.

Right to object

You may object to our processing of personal information based on legitimate interests.

Right to withdraw consent

Transit adheres to privacy by design principles. All features are initially disabled, and each user must opt-in to enable features that collect personal information. If you change your mind after enabling certain features, you can revert to the original settings or uninstall the app. Withdrawing consent will only affect future collection of personal information. To delete personal information we already hold, use the “delete account” functionality found within the app.

Rights related to automated decision-making including profiling

We do not perform automated decision making.

If you want to exercise your rights, or if you have a question or complaint about how we collect, use, or disclose your personal information, you can communicate with us by email at privacy@transit.app or send us a letter at the address indicated above.

Generally, we will address your inquiries within 30 days unless we request an extension because of the nature of your request. Different laws govern how to respond to your requests regarding your personal information, and we may change how we respond to your request to comply with these laws.

We will make every effort to respond to your request without incurring any fees. However, if your request requires significant resources or effort, we will contact you to discuss the matter further.

If we cannot respond to your inquiry or if we must reject your request, we will notify you via email and explain our decision. If you do not agree with how we handled your inquiry or request, please let us know. Otherwise, you can also contact your local data protection

authority or privacy and data protection regulator, such as the Office of the Privacy Commissioner of Canada if you are located in Canada:

Office of the Privacy Commissioner
30 Victoria Street
Gatineau, QC Canada, K1A 1H3
www.priv.gc.ca
+1 800-282-1376

Updates to this Privacy Policy

We will update this Privacy Policy for various reasons, such as to reflect changes to how we process your personal information, or if there are new laws requiring additional or different disclosures than those provided herein. If these changes are material, we will notify you on our Services or otherwise on our website. We will not process your personal information for purposes not compatible with the purposes described herein without your consent unless

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